

25LBCV03382 25LBCV03382

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25LBCV03382 Hearing Date: June 23, 2026 Dept: S27

1. Background

Facts

Plaintiff, Nader Basta filed this

action against Defendants, Belmont Shore Condominiums Homeowners Association,

Wendy Milet, Gale de Paemelaere, Gustavo Guzman, Elizabeth Tholl, Mirada

Management, Inc., and Cynthia Aldana for breach of contract and related claims

arising out of an HOA dispute. The crux

of the dispute is that Defendants have been over-charging Plaintiff HOA

assessments, referred a past-due amount for collections without following the

HOA collection policy or requirements of the CC&Rs, imposed an improper

fine, made false reports of noise violations, wrongly accused Plaintiff of

causing a leak, and failed to provide proper notice of HOA board meetings to

Plaintiff.

2. Demurrer

a.

Legal Standard on Demurrer

A demurrer is a pleading used to

test the legal sufficiency of other pleadings. It raises issues of law, not

fact, regarding the form or content of the opposing party's pleading. It is not the function of the demurrer to

challenge the truthfulness of the complaint; and for purpose of the ruling on

the demurrer, all facts pleaded in the complaint are assumed to be true,

however improbable they may be.

A demurrer can be used only to

challenge defects that appear on the face of the pleading under attack; or from

matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* 39

Cal.3d 311 (1985). No other extrinsic evidence can be considered (i.e., no

"speaking demurrers"). A demurrer is brought under CCP § 430.10 [grounds], §

430.30 [as to any matter on its face or from which judicial notice may be

taken], and § 430.50(a) [can be taken to the entire complaint or any cause of

action within]. Specifically, a demurrer

may be brought per CCP § 430.10(e) if insufficient facts are stated to support

the cause of action asserted. Per CCP

§430.10(a) a demurrer may be brought where the court has no jurisdiction of the

subject of the cause of action alleged in the pleading. Furthermore, demurrer for uncertainty will be

sustained only where the complaint is so bad that the defendant cannot

reasonably respond. CCP §

430.10(f).

However, in construing the

allegations, the court is to give effect to specific factual allegations that

may modify or limit inconsistent general or conclusory allegations. *Financial*

Corporation of America v. Wilburn, 189 Cal.App.3d 764, 769 (1987). And, if the

facts pled in the complaint are inconsistent with facts which are incorporated

by reference from exhibits attached to the complaint, the facts in the

incorporated exhibits control. Further, irrespective of the name or label given

to a cause of action by the plaintiff, a general demurrer must be overruled if

the facts as pled in the body of the complaint state some valid claim for

relief. Special demurrers are not allowed in limited jurisdiction courts. (CCP

§ 92(c).)

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. *Goodman v.*

Kennedy, 18 Cal.3d 335, 348 (1976). The burden is on the complainant to show

the Court that a pleading can be amended successfully. (*Id.*)

Finally, CCP section 430.41

requires that “[b]efore filing a demurrer pursuant to this chapter, the

demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP §430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP §430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP §430.41(a)(3).)

b. Initial

Note

Plaintiff filed timely opposition papers on 6/09/26. Any reply to the opposition was due on or before 6/15/26.

The Court has not received timely reply papers, and will not consider late-filed reply papers.

c. Meet

and Confer

Plaintiff filed the complaint on 12/12/25. Plaintiff filed proof of service of the summons, complaint, and related papers on Belmont Shores and Milet on 2/09/26. The POS documents showed personal service on Milet on 1/30/26 and on Belmont on 1/06/26. Plaintiff filed proof of service of the

summons, complaint, and related papers on Tholl on 2/19/26; the POS showed service by personal service on 2/14/26.

On 2/18/26, Belmont ONLY, through

attorney Garrett M. Wait, filed a declaration in support of automatic extension of time to file a demurrer. On 3/25/26,

Milet and Tholl ONLY, through attorney Wait, filed this demurrer and motion to strike. 3/25/26 was more than 30 days

after Milet and Tholl were served, but Wait never filed a declaration in support of automatic extension on behalf of either of them.

The demurrer and motion to strike

are accompanied by a meet and confer declaration, which indicates Wait emailed

Plaintiff's attorney to schedule a meet and confer on 2/13/26, the parties met

and conferred telephonically on 2/17/26, and Wait emailed Plaintiff's attorney

on 2/17/26 to recap the meet and confer efforts.

Notably, when Wait was emailing

Plaintiff's attorney, it was not yet apparent that he was representing Milet

and/or Tholl, as he had not filed anything on their behalf. The 2/13/26 correspondence states, "Please

let me know if you have some availability today to meet and confer regarding

Belmont Shore's intent to file a demurrer and motion to strike...." The 2/17/26 correspondence opens, "This firm

represents Belmont Shore Condominiums Homeowners Association in the

above-referenced matter filed by your client, Nader Basta. Per our conversation, the Association intends

to demur to the Complaint, and file a motion to strike punitive damages. Please allow this letter to serve as a follow-up

to our telephonic meet and confer.”

Thus, it does not appear Wait ever

met and conferred on behalf of Milet and/or Tholl, on whose behalf he

ultimately filed the demurrer and motion to strike. Plaintiff raises this issue in opposition to

the demurrer and motion to strike, and absent any reply papers, the Court finds

the meet and confer efforts were insufficient.

d. Reply

Any reply to the opposition was due

on or before 3/25/26. Defendant did not

file timely reply papers.

e. Guidance

The Court is continuing the hearing

on the demurrer and motion to strike to require the parties to meet and

confer. The Court offers guidance in an

attempt to assist the parties in doing so.

First, the parties discuss the

requirements of Civil Code §5930, et seq.

§5930(b) clarifies that the pre-filing ADR requirement does not apply to

actions seeking monetary damages in excess of the limits of the small claims

courts. Plaintiff contends he seeks such

damages by way of this action. The

parties must meet and confer re: the scope of the claimed monetary damages in

this action.

Second, the individual defendant

argue any contract runs between Plaintiff and the HOA, and since they are not

parties to the contract, they cannot be sued for breach of contract. Plaintiff, in opposition, contends that

because the board of directors members were acting in their official capacities

at all times relevant to the complaint, a breach of contract cause of action is

properly asserted against them.

Plaintiff cites no authority for this position. In general, entities are vicariously liable

for the acts of their agents, but there is nothing making agents vicariously

liable for the acts of the entity. If

Plaintiff wishes to pursue the contract-based claims, he must cite authority

permitting her to do so. The Court will

not do his research for him.

With respect to breach of fiduciary

duty, Defendants demur on the grounds that the complaint fails to allege any

act that any specific defendant took (as opposed to "defendants" collectively),

and that the business judgment rule bars the cause of action. The only act the Court can find that

Plaintiff alleges Tholl personally engaged in was calling the police to falsely

report noise violations (§18). The Court

cannot find any act Milet allegedly personally took. It is unclear if falsely reporting a noise violation

is a breach of a fiduciary duty. Again,

there is no reverse vicarious liability that would cause the individual

defendants to be liable for the HOA's acts.

Plaintiff must clarify which individual defendant did what and how that

individual defendant's acts were breaches of fiduciary duties. As to the business judgment rule, Plaintiff

correctly notes that the corresponding rule applicable to homeowners

associations requires a plaintiff to show lack of good faith in order to

maintain a claim. This is a necessarily

factual issue that cannot be resolved at the pleading stage.

Defendants demur to the fourth

cause of action for violation of statutory duties, correctly noting, again,

that Plaintiff has not pled any breach that either of the two individual

defendants personally engaged in. Defendants

also argue judicially noticeable documents from two other lawsuits bar the

claim. Plaintiff correctly notes in

opposition that Defendants did not file a request for judicial notice and did

not provide copies of the documents upon which they rely. The parties must meet and confer concerning the effect of the other cases, as well as to ensure acts by the individual defendants are specifically articulated.

Defendants argue the negligence

cause of action is duplicative of the contract and statutory claims, and

Plaintiff argues the cause of action stands alone. Defendants do not cite any authority to

support their apparently position that a claim for negligence cannot be stated

if it mirrors claims for breach of contract and breach of statutory

duties. If Defendants wish to pursue

this argument, they must cite applicable authority. The parties must meet and confer concerning

whether a negligence claim can be premised on the same set of facts alleged in

the contract and statutory causes of action, and/or whether Plaintiff has pled

additional acts to support her tort-based claim. Again, Plaintiff must clarify which defendant

engaged in which act, as he has continued to fail to do so.

The parties note that there is a

split in authority between various courts concerning whether unjust enrichment

can be pled as a separate cause of action or whether it is merely a theory of

recovery. The Court will allow it to be

pled as a standalone cause of action.

There is no harm in permitting this “theory of recovery” to be pled as a

cause of action.

With respect to the IIED cause of

action, the Court agrees that Plaintiff, as discussed above, must allege which

defendant did which act. The Court

cannot determine whether the acts of either of the two individual defendants

risks to the level of IIED unless Plaintiff does so.

Defendants correctly note that the

claim for injunctive relief cannot be pled as a standalone cause of action, as

an injunction is a remedy and not a cause of action. Plaintiff may incorporate a prayer for

injunctive relief into any applicable cause of action, but cannot plead a

standalone cause of action for injunctive relief. The same goes for the claim for equitable

relief.

f. Motion

to Strike

Defendants move to strike the

prayer for punitive damages and related allegations. As discussed at length above, the complaint

fails to show which acts which defendant personally engaged in. Plaintiff must clarify. The Court cannot determine if the acts give

rise to a claim for punitive damages unless and until he does so.

Defendants also move to strike the

prayer for injunctive relief, contending Plaintiff has not pled irreparable

injury or that monetary damages are insufficient. Plaintiff seeks an injunction requiring

Defendants to cease imposing unauthorized fines and assessments, failing to

allow inspection of records, issuing retaliatory communications,

allowing/encouraging harassment, and failing to give statutory notice of HOA

board meetings. Plaintiff alleges

irreparable harm and insufficiency of monetary damages at ¶¶89-90. The Court would not be inclined to strike the

injunctive relief allegations.

g. Continuance

The hearing on the demurrer and

motion to strike is continued for two months, to Tuesday, 8/25/26 at 8:30 a.m.

in Department S27. The parties must meet

and confer in good faith within the next two weeks. If they resolve their issues, they must take

the pleading challenge off calendar. If

they fail to do so, they must file short briefs and declarations concerning

their meet and confer efforts and any outstanding issues at least two weeks

prior to the continued hearing.

The case management conference,

also on calendar today, is also continued to 8/25/26 at the same time and

location as the demurrer and motion to strike.

h. Notice

Defendants are ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify

the party submitting on the tentative. If

the parties do not submit on the tentative, they should arrange to appear

remotely.